

Between vs Hotel on 7 May, 2025

IN THE HIGH COURT OF ANDHRA PRADESH AT AMARAVATI
I,

WEDNESDAY, THE SEVENTH DAY OF MAY
TWO THOUSAND AND TWENTY FIVE

. -PRESENT.-
THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA KRISHNA

IANo.1 OF2025

IN

TRCMP NO: 156 OF 2025

Between :

Matseti Santhoshi @ Gude Santhoshi, w/o Sri Gude Lahari Krishna, D/o Sri
Matseti Siva, Age 26 Years, Occ: House Wife, R/o D.No.

Muralikonda, Bommuru -533124, Rajahmundry Rural Mandali, East Godavari
District

I AND

Gude Lahari Krishna, S/o Sri Babu Rao, Occ. Chip Engineer in Samsung
Company, R/o House No. 43, Mani Vani Nilayam, Ashoka Layout, Opp. 7 Hill

Hotel, Marathahalli, Bangalore -560 037 State of Karnataka.

Counsel for the Petitioner : SRI N SIVA REDDY

Counsel for the Respondent :

Petition under section 151 CPC is filed praying that
circumstances stated in the memorandum of grounds filed in support of the

Petition, the High Court may be pleased to grant stay of all further proceedings
in F.C.O.P.No. 335 of 2025 pending on the file of the Additional Family Judge

Court, Visakhapatnam, pending disposal of TRCMP No. 156 of 2025, on the
file of the High Court.

The court while directing issue of notice to the Respondents herein to
show cause as to why this application should not be complied with, made the
following order. (The receipt of this order will be deemed to be the receipt of
notice in the case). The Court made the following

ORDER:

f/ [f] Heard Sri N. Siva Reddy; learned counsel for the petitioner.

Learned counsel for the petitioner contended that the petitioner is none other than the wife of the respondent/husband, due to the matrimonial disputes between both the spouses, the petitioner/wife has been residing separately at her parents' house at Rajahmundry, East Godavari District.

He would further contend that in view of the harassment made by the respondent, the petitioner/wife lodged a complaint dated 02.12.2024, against the respondent/husband in F.I.R.No.141 of 2024, for the offences punishable under Sections 85, 351(2) I/w Section 3(5) of B.N.S. Act, 2023 and under Sections 3 & 4 of the Dowry Prohibition Act, 1961, before Manila Police Station, Rajahmundry, East Godavari District, the same is pending of investigation.

He would further contend that the petitioner/wife filed a Maintenance Case before the Judicial Magistrate of First class, Rajahmundry, East Godavari District, under Section 125 of Cr[P.C., seeking monthly maintenance from the respondent/husband and She also filed a Domestic Violence case vide D.V.C.(SR)No.1072 of 2025 on the file of the VI Judicial Magistrate of First Class, Rajahmundry, East Godavari District, under Section 12 of the Protection of Women From Domestic Violence Act, 2005, and the two (2) cases are pending for adjudication before the competent Courts at Rajahmundry, against the respondent/husband. Learned counsel for the petitioner would further contend that to cause unnecessary inconvenience to the Petitioner, the respondent/husband had filed F.C.O.P.No.335 of 2025, on the file of the Additional Family Judge Court, Visakhapatnam, under section 12(1)(c) of the Hindu Marriage Act, 1955, to declare the marriage of the petitioner with the respondent as null and void and the same is also pending for adjudication.

He would further contend that the distance between Rajahmundry and Visakhapatnam, is more than 200 Kms, it is very difficult for the Petitioner/Wife to attend the divorce case proceedings before the Additional Family Judge Court, Visakhapatnam, on each and every adjournment without any male support and that she is constrained to file the present transfer petition.

Perused the record.

Considering the submissions made by the learned counsel for the petitioner and for the reasons mentioned in the accompanying affidavit, there shall be an Interim Stay of all further proceedings including the appearance of the petitioner herein i.e., the respondent in F.C.O.P.No.335 of 2025, on the file of the Additional Family Judge Court, Visakhapatnam, till 23.06.2025. Learned counsel for the petitioner is permitted to take Out Personal notice to the respondent through Registered Post with Acknowledgment Due and file proof of service before the Registry."

Sd/-M. SURYANATHA REDDY DEPUTY REGISTRAR //TRUE COPY// di,--- .-,,, ZZ/ For ASSISTANT REGISTRAR To,

1. The Additional Family Judge Court, Visakhapatnam.

2. Gude Lahari Krishna, S/o Sri Babu Rao, Occ. Chip Engineer in Samsung company, R/o House No. 43, Mani Vani. Nilayam, Ashoka Layout, opp. 7 Hill Hotel, Marathahalli, Bangalore - 560 037 State of Karnataka. (By RPAD)

3. One CC to .SRI. N SIVA REDDY, Advocate [OPUC]

4. One spare copy KN Cg.

HIGH COURT VG KRIJ DATED :07/05/2025 POST THE MATTER ON 23.06.2025.

ORDER IANo.1 OF2025 IN TRCMP NO: 156 OF 2025 INTERIM STAY